

23STCV30926 23STCV30926

County: los-angeles

Division: Civil Law and Motion

Department: 516

Hearing date: 2026-07-07

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C516%2C07%2F07%2F2026

Source SHA-256: f61f1b1b6fea4f815a5590a08fc6c70bfaa9a21327fc399d06ee3dab5310e347

Case Number: 23STCV30926 Hearing Date: July 7, 2026 Dept: 516

Judge James

I. Montgomery

Department 516

Hearing Date: July 7, 2026

Case Name: Phillips,

et al. v. Innes Heights LP

Case No.: 23STCV30926

Matter: Motion to Continue Trial

Moving Party: Defendant Innes Heights LP

Responding Party: Plaintiffs Latisha Phillips, Lonella Ballard, Ishmael

Ballard, Innes Heights,

and

Isaac Ballard

Tentative

Ruling: The Motion

to Continue Trial is denied.

Plaintiffs Latisha Phillips, Lonella Ballard, Ishmael Ballard, Innes Heights, and Isaac Ballard (collectively "Plaintiffs") filed this action

against Defendant Innes Heights LP (“Defendant”). The First Amended Complaint (“FAC”) alleges seven causes of action for: (1) breach of implied warranty of habitability; (2) breach of statutory warranty of habitability; (3) breach of the covenant of quiet enjoyment; (4) negligence; (5) violation of Civil Code section 1942.4; (6) violation of Tenant Anti-Harassment Ordinance; and (7) violation of Unfair Competition Law.

Defendant moves to continue the trial until after January 17, 2027. Plaintiff opposes.

Discussion

Defendant moves to continue the trial date pursuant to California Rules of Court 3.1332.

California Rules of Court expressly permit a trial date to be continued upon a showing of “good cause.” (Cal. Rules of Court, rule 3.1332(c).) Trial continuances are “disfavored,” and “[t]he court may grant a continuance only on an affirmative showing of good cause requiring the continuance.” (Ibid.)

Rule 3.1332(c) lists seven circumstances “that may indicate good cause,” and Rule 3.1332(d), lists additional factors the trial court may consider. The trial court must consider all relevant facts and circumstances surrounding the continuance, including: “[t]he proximity of the trial date”; “[t]he length of the continuance requested”; “[t]he availability of alternative means to address the problem that gave rise to the motion or application for a continuance”; “[t]he prejudice that parties or witnesses will suffer as a result of the continuance”; and “[w]hether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance” (Cal. Rules of Court, rule 3.1332(d)(1)-(4), (10).)

In support of its motion, Defendant argues that it needs additional time to complete discovery, specifically to complete Plaintiff Latisha Phillips’s deposition, for the Court to hear Defendant’s motion to compel Plaintiff Latisha Phillips to be deposed, and for the parties to attend mediation scheduled for July 15, 2026. Trial is currently set to start on August 17, 2026.

However, these grounds do not constitute “good cause” for a continuance under the circumstances.

As an initial matter, this action was filed on December 18, 2023, and Defendant filed their answer on June 14, 2024. Defendant contends that it has served twelve deposition notices from August 8, 2024, through June 11, 2026, and Plaintiff Latisha Phillips has only appeared to be deposed on March 13, 2025 (for less than 3 hours), June 6, 2025 (for 61 minutes), and a third deposition is scheduled for June 11, 2026. (Hodge Decl., ¶¶ 2-6.) Defendant requests that the Court grant a trial continuance because Defendant failed to make timely and diligent efforts as provided under the Civil Discovery Act. Defendant claims that while it has served deposition notices since August 8, 2024, it filed a motion to compel deposition on June 1, 2026, and it is scheduled to be heard on July 20, 2026. All these dates are before the trial is set to commence on August 15, 2026.

Defendant also argues that, for mediation to be completed, the trial date must be continued until next year. Again, the Court is not persuaded by Defendant's argument. In reply, Defendant affirms to the Court that mediation is scheduled for July 15, 2026, which is still before trial is set to start.

Finally, Defendant argues that a new claim has been asserted by Plaintiffs because the Los Angeles County Department of Children and Family Services took Plaintiff Latisha Phillips's children. However, the FAC has remained unchanged since May 24, 2024.

The Court notes that based on the papers of Plaintiffs and Defendant, Plaintiff Latisha Phillips has been served with a deposition notice 12 times. The Court will address this separate issue at the hearing on Defendant's motion to compel the deposition of Plaintiff Latisha Phillips. Granting Defendant's motion will heavily impact the Court's calendar, and Defendant has failed to show good cause to warrant a continuance.

Thus, Defendant has not demonstrated good cause to continue the trial date.

Conclusion

Defendant's
motion to continue
trial is denied.